UPSC INDIAN POLITY

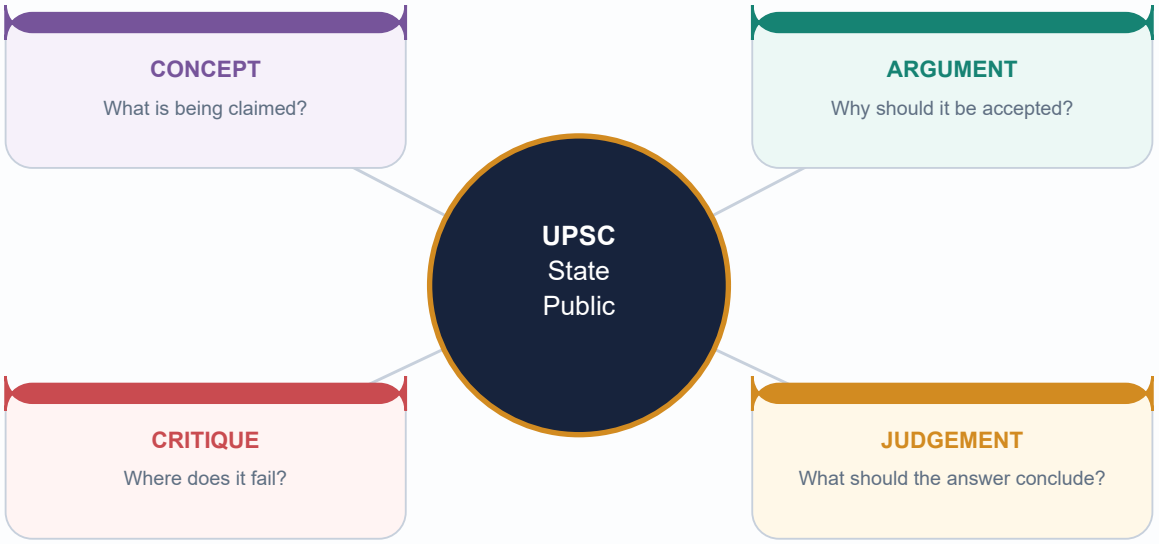
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: UPSC-and-SPSC.md + 28_UPSC-and-SPSC.md

Learning cards: 39



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS-II**

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/28_UPSC-and-SPSC.md — not required for any mark.*

MEMORY HOOK

□ = from book · □ = current link · = mnemonic. *Advanced: optional deeper detail in advanced/28_UPSC-and-SPSC.md — not required for any mark.*

MUST-KNOW FACTS

1. = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/28_UPSC-and-SPSC.md — not required for any mark.*

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Articles / Part	**Art 315–323**, Part **XIV**
Nature	Independent **constitutional** body
UPSC term	**6 yr / 65 yr** · SPSC term **6 yr / 62 yr**
Removal	Both UPSC & SPSC members removed **only by the President**

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

The **UPSC** is India's central recruiting agency — the **"watch-dog of the merit system"** — recruiting for All-India & Central services. Its advice is **only advisory**, not binding. Each state has a **State PSC (SPSC)**; a **Joint SPSC (JSPSC)** can serve two+ states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

V

Dimension 1 The UPSC is India's central recruiting agency — the "watch-dog of the merit system" — recruiting for All-India & Central services. Its advice is only	**Dimension 2** □ Appointment vs removal: UPSC → President appoints & removes. SPSC → Governor appoints, President
Dimension 3 removes. JSPSC → Act of Parliament, President appoints.	**Dimension 4** □ ½ members must have 10+ years of government service.

STATIC THEORY

- □ **Appointment vs removal:** UPSC → President appoints & removes. **SPSC → Governor appoints, President

- removes. **JSPSC** → Act of Parliament**, President appoints.

- □ **½ members** must have **10+ years** of government service.

MEMORY HOOK

Appointment vs removal: UPSC → President appoints & removes. SPSC → Governor appoints, President | ½ members must have 10+ years of government service.**

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts · Part 1

GS-II Indian Polity

INTRO & ORIGIN

□ Strength is **not fixed by the Constitution**; avoid treating a past usual range as

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 Strength is not fixed by the Constitution; avoid treating a past usual range as	**Dimension 2** a constitutional or permanent composition.
Dimension 3 Removal for misbehaviour needs a Supreme Court enquiry (advice binding).	**Dimension 4** UPSC expenses are charged on the Consolidated Fund of India; SPSC expenses are

STATIC THEORY

- a constitutional or permanent composition.

- Removal for misbehaviour needs a **Supreme Court enquiry** (advice binding).

- UPSC expenses are charged on the **Consolidated Fund of India**; SPSC expenses are

- charged on the **Consolidated Fund of the State** (Art 322).

- **Post-tenure rules are office-specific:** UPSC Chairman gets no further government employment; SPSC Chairman may become UPSC Chairman/member or another SPSC Chairman; members have the narrower Article 319 routes. **No reappointment to the same office.**

- Advice is **directory, not mandatory** (SC-held); confers **no right to the post**.

MUST-KNOW FACTS

1. Strength is **not fixed by the Constitution**; avoid treating a past usual range as

2. Removal for misbehaviour needs a **Supreme Court enquiry** (advice binding).

3. UPSC expenses are charged on the **Consolidated Fund of India**; SPSC expenses are

4. Post-tenure rules are office-specific: UPSC Chairman gets no further government employment; SPSC Chairman may become UPSC Chairman/member or another SPSC Chairman; members have the narrower Article 319 routes. **No reappointment to the same office.**

5. Advice is **directory, not mandatory** (SC-held); confers **no right to the post**.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · Must-Know Facts · Part 2

GS-II Indian Polity

INTRO & ORIGIN

 Cadre/pay/training → **DoPT**, not UPSC.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Cadre/pay/training → **DoPT**, not UPSC.

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link

GS-II Indian Polity

NEWS TRIGGER

□ **Puja Khedkar case (2024)** put UPSC candidate-verification & integrity in the spotlight; **lateral entry** into the bureaucracy remains a live debate on the merit system.

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
Purpose: make this Core file independently answer directive-sensitive GS-II questions on the UPSC's independence, its advisory-recruiting character, the removal safeguard, and the SPSC/JSPSC federal design — without opening Advanced.

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 5.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
UPSC independence	"watch-dog of the merit system", Examine	Art 315–319 safeguards → Art 317 removal → Art 319 post-office bar → residual gaps → verdict
Advisory / limited role	"advice is not binding", "only a recruiting body", Comment	Art 320 functions → 320(3) directory → 321 extension → recruiting-only critique
SPSC federal design	"appointed by Governor but removed by the President", Analyse	Art 316 appointment → Art 317 Union removal → Art 315(2) JSPSC → federal balance
Removal & tenure security	"how is a member removed", Discuss	Art 317(1) SC reference → 317(2) suspension → 317(3) other grounds → independence
Merit-system reform	lateral entry, exam reform, Critically examine	Recruiting role → Art 320 exclusions → DoPT split → reform trade-offs

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.1 Demand and directive map

HIGH

Foundation · 5.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The UPSC's independence is judicially protected at the point of removal (a Supreme Court reference under Art 317) but institutionally thin at the point of function — it recruits without owning promotions, cadre or service-conditions policy.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.2 QUALIFIED THESIS OPTIONS: RECALL MAP

5.2 Qualified thesis options

V

Dimension 1 The UPSC's independence is judicially protected at the point of removal (a Supreme Court reference under Art 317) but institutionally thin at the poin	**Dimension 2** The SPSC embodies a deliberate federal asymmetry: a State appoints its own commission (the Governor, Art 316) but only the Union can remove its member
Dimension 3 The UPSC's value lies less in binding power than in the transparency of dissent: the Art 323 memorandum on non-accepted advice converts a merely advis	**Dimension 4** Because Art 320(3) is directory, the UPSC's guarantee of merit is procedural rather than enforceable — its authority rests on convention and the polit

STATIC THEORY

- The SPSC embodies a deliberate federal asymmetry: a State appoints its own commission (the Governor, Art 316) but only the Union can remove its members (the President, Art 317), insulating a State body from State political pressure.

- The UPSC's value lies less in binding power than in the transparency of dissent: the Art 323 memorandum on non-accepted advice converts a merely advisory body into an accountability check.

- Because Art 320(3) is directory, the UPSC's guarantee of merit is procedural rather than enforceable — its authority rests on convention and the political cost of publicly overriding it.

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.2 Qualified thesis options

HIGH

Foundation · 5.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → two safeguards/functions → one gap → verdict	3 units, at least one Article
15	Thesis → composition & appointment → removal & independence → functions & limits → verdict	5–6 units
20	Thesis → design (315–319) → functions (320–321) → finance & report (322–323) → SPSC/JSPSC federal angle → critique → graded verdict	6–8 units

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.3 Mark-scaled structures

HIGH

Foundation · 5.4 Bank A — Composition, appointment and tenure (Art 315–316)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Attribute	Position	Caution
□ Legal source	**Arts 315–323, Part XIV**	Directly constitutional (except the JSPSC)
□ Strength	Determined by the President/Governor; **not fixed** by the Constitution	Avoid citing a "usual" range as constitutional
□ Qualification (Art 316(1))	**No qualifications prescribed**, but **one-half** of the members must have held office **at least ten years** under the Union or a State	This ten-year rule is the only composition requirement
□ Appointment	**President** (UPSC) · **Governor** (SPSC) · **President** (JSPSC)	
□ Term (Art 316(2))	**6 years or 65 years** (UPSC), **6 years or 62 years** (SPSC), whichever earlier	SPSC age is **62**, not 65
□ Acting chairman (Art 316(1A))	The President/Governor may appoint a member to act as chairman	

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.4 Bank A — Composition, appointment and tenure (Art 315–316)

HIGH

Foundation · 5.4 Bank A — Composition, appointment and tenure (Art 315–316)

GS-II Indian Polity

INTRO & ORIGIN

Claim → the Constitution creates the body but leaves its size open. □ **Art 315(1)** establishes a UPSC for the Union and an SPSC for each State. → **Mechanism:** members are appointed and the strength fixed by the **President** (UPSC) or **Governor** (SPSC). → **Limit:** □□ the Constitution prescribes **no fixed strength** — do not state a permanent number.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Claim → the Constitution creates the body but leaves its size open. Art 315(1) establishes a UPSC for the Union and an SPSC for each State. → **Mechanism:** members are appointed and the strength fixed by the **President** (UPSC) or **Governor** (SPSC). → **Limit:** □□ the Constitution prescribes **no fixed strength** — do not state a permanent number.

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.4 Bank A — Composition, appointment and tenure (Art 315–316)

HIGH

Foundation · 5.5 Bank B — Removal, independence and the post-office bar (Art 317–319, 322)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

On ceasing office	Eligible for	Barred from
□ UPSC **Chairman**	Nothing further	**Any** employment under the Union or a State
□ SPSC **Chairman**	**UPSC Chairman or member**, or **Chairman of another SPSC**	Any other government employment
□ UPSC **member**	**UPSC Chairman** or **an SPSC Chairman** only	Any other government employment
□ SPSC **member**	**UPSC Chairman or member**, or Chairman of **that or another SPSC**	Any other government employment

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.5 Bank B — Removal, independence and the post-office bar (Art 317–319, 322)

HIGH

Foundation · 5.5 Bank B — Removal, independence and the post-office bar (Art 317–319, 322)

GS-II Indian Polity

INTRO & ORIGIN

Claim → removal is deliberately hard and centralised in the Union. □ **Art 317(1)**: a chairman or member is removed **only by the President** on the ground of **misbehaviour**, and only **after the Supreme Court**, on a reference by the President, has held an inquiry and **recommended removal** — the SC's advice is **binding**. → **Mechanism:** □ **Art 317(2)** lets the President **suspend** the member during the inquiry. → **Limit:** □ **Art 317(3)** allows removal on the objective grounds of **insolvency, paid employment outside office, or infirmity of mind/body**, and **317(4)** deems a member guilty of misbehaviour if interested in a government contract.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.5 BANK B — REMOVAL, INDEPENDENCE AND THE POST-OFFICE BAR (ART 317–319, 322): RECALL MAP

5.5 Bank B — Removal, independence and the post-office bar (Art 317–319, 322)

V

Dimension 1 Claim → removal is deliberately hard and centralised in the Union. □ Art 317(1): a chairman or member is removed only by the President on the ground o	**Dimension 2** Federal point: □ even an SPSC member — appointed by the Governor — can be removed only by the President, never by the Governor.
Dimension 3 Independence safeguards: □ security of tenure; □ conditions of service cannot be varied to disadvantage after appointment (Art 318 proviso); □ expense	**Dimension 4** Post-office bar (Art 319 — exact scope):

STATIC THEORY

- **Federal point:** □ even an **SPSC** member — appointed by the **Governor** — can be removed **only by the President**, never by the Governor.

- **Independence safeguards:** □ security of tenure; □ conditions of service **cannot be varied to disadvantage** after appointment (Art 318 proviso); □ expenses (salaries, allowances, pensions) are **charged on the Consolidated Fund** of India/the State (**Art 322**), so they are non-votable.

- **Post-office bar (Art 319 — exact scope):**

- **Exact-scope case:** □□ *A.R. Kidwai* — appointment of a retired UPSC chairman as **Governor** was upheld because a **Governor holds a constitutional office**, not "employment under the Government" within Art 319. There is **no reappointment** to the same office (no second term).

MUST-KNOW FACTS

1. Claim → removal is deliberately hard and centralised in the Union. Art 317(1): a chairman or member is removed **only by the President** on the ground of **misbehaviour**, and only **after the Supreme Court**, on a reference by the President, has held an inquiry and **recommended removal** — the SC's advice is **binding**. → **Mechanism: Art 317(2)** lets the President **suspend** the member during the inquiry. → **Limit: Art 317(3)** allows removal on the objective grounds of **insolvency, paid employment outside office, or infirmity of mind/body**, and **317(4)** deems a member guilty of misbehaviour if interested in a government contract.

2. Federal point: even an **SPSC** member — appointed by the **Governor** — can be removed **only by the President**, never by the Governor.

3. Independence safeguards: security of tenure; conditions of service **cannot be varied to disadvantage** after appointment (Art 318 proviso); expenses (salaries, allowances, pensions) are **charged on the Consolidated Fund** of India/the State (**Art 322**), so they are non-votable.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.5 Bank B — Removal, independence and the post-office bar (Art 317–319, 322)

HIGH

Foundation · 5.6 Bank C — Functions, the consultation duty and its limits (Art 320–321, 323)

GS-II Indian Polity

INTRO & ORIGIN

Claim → the UPSC's core function is recruitment and advice, and the advice is not legally binding. □ **Art 320(1)**: conduct examinations for appointments to the services of the Union/State. □ **Art 320(3)**: the Commission **shall be consulted** on (a) methods of recruitment; (b) principles for appointments, promotions and transfers; (c) disciplinary matters; (d) legal-expense claims; and (e) pension/injury claims. → **Mechanism:** the **proviso to Art 320(3)** lets the President/Governor make **regulations excluding** matters from consultation. → **Limit:** □□ **Art 320(3) is directory, not mandatory** — non-consultation does **not invalidate** a government decision, and UPSC selection confers **no right to the post**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.6 BANK C — FUNCTIONS, THE CONSULTATION DUTY AND ITS LIMITS (ART 320–321, 323): RECALL MAP

5.6 Bank C — Functions, the consultation duty and its limits (Art 320–321, 323)

V

Dimension 1 Claim → the UPSC's core function is recruitment and advice, and the advice is not legally binding. □ Art 320(1): conduct examinations for appointments	**Dimension 2** Extension of functions: □ Art 321 lets Parliament (UPSC) or a State legislature (SPSC) confer additional functions, including over the services of a l
Dimension 3 Accountability route: □ Art 323 — the UPSC presents an annual report to the President, laid before Parliament with a memorandum explaining any case wh	**Dimension 4** Excluded matters: □ the UPSC is not consulted on reservations for backward classes, SC/ST claims, appointments to tribunal/commission chairmanships an

STATIC THEORY

- **Extension of functions:** □ **Art 321** lets **Parliament** (UPSC) or a **State legislature** (SPSC) confer additional functions, including over the services of a local authority or body corporate.

- **Accountability route:** □ **Art 323** — the UPSC presents an **annual report** to the President, laid before Parliament **with a memorandum explaining any case where its advice was not accepted** and the reasons; the SPSC reports to the Governor and the State legislature likewise.

- **Excluded matters:** □ the UPSC is **not consulted** on reservations for backward classes, SC/ST claims, appointments to tribunal/commission chairmanships and top diplomatic posts, the bulk of Group C and D, and temporary appointments of a year or less.

MUST-KNOW FACTS

1. Claim → the UPSC's core function is recruitment and advice, and the advice is not legally binding. Art 320(1): conduct examinations for appointments to the services of the Union/State. **Art 320(3)**: the Commission **shall be consulted** on (a) methods of recruitment; (b) principles for appointments, promotions and transfers; (c) disciplinary matters; (d) legal-expense claims; and (e) pension/injury claims. → **Mechanism:** the **proviso to Art 320(3)** lets the President/Governor make **regulations excluding** matters from consultation. → **Limit: □□ Art 320(3) is directory, not mandatory** — non-consultation does **not invalidate** a government decision, and UPSC selection confers **no right to the post**.

2. Extension of functions: Art 321 lets **Parliament** (UPSC) or a **State legislature** (SPSC) confer additional functions, including over the services of a local authority or body corporate.

3. Accountability route: Art 323 — the UPSC presents an **annual report** to the President, laid before Parliament **with a memorandum explaining any case where its advice was not accepted** and the reasons; the SPSC reports to the Governor and the State legislature likewise.

4. Excluded matters: the UPSC is **not consulted** on reservations for backward classes, SC/ST claims, appointments to tribunal/commission chairmanships and top diplomatic posts, the bulk of Group C and D, and temporary appointments of a year or less.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.6 Bank C — Functions, the consultation duty and its limits (Art 320–321, 323)

HIGH

Foundation · 5.7 Bank D — SPSC and the Joint SPSC (federal design)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Body	Legal source	Appointed by	Removed by	Term
□ **UPSC**	Constitution (Art 315(1))	President	President (Art 317)	6 yr / 65
□ **SPSC**	Constitution (Art 315(1))	**Governor**	**President** (Art 317)	6 yr / **62**
□ **JSPSC**	**Act of Parliament** (Art 315(2)) on the States' request — **statutory, not constitutional**	President	President	6 yr / 62

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.7 Bank D — SPSC and the Joint SPSC (federal design)

HIGH

Foundation · 5.7 Bank D — SPSC and the Joint SPSC (federal design)

GS-II Indian Polity

INTRO & ORIGIN

 Art 315(4): the **UPSC may serve a State's** needs on the **Governor's request** with the **President's approval**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **Key trap:** an SPSC member is **appointed by the Governor but removable only by the President** — a State functionary answerable, for removal, only to the Union.

MUST-KNOW FACTS

1. Art 315(4): the **UPSC may serve a State's** needs on the **Governor's request** with the **President's approval**.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.7 Bank D — SPSC and the Joint SPSC (federal design)

HIGH

Foundation · 5.8 Mechanism, institutional incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

Why removal runs through the President and the Supreme Court: □□ it insulates a member from the very government — Union or State — whose recruitment and discipline it audits; the consequence is that a State cannot punish its own SPSC for inconvenient advice.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.8 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES: RECALL MAP

5.8 Mechanism, institutional incentives and consequences

V

Dimension 1 Why removal runs through the President and the Supreme Court: □□ it insulates a member from the very government — Union or State — whose recruitment a	**Dimension 2** Why Art 320(3) is only directory: □□ it preserves the executive's ultimate responsibility for administration, but the price is that merit protection d
Dimension 3 Why the Art 323 memorandum matters: □□ it forces the government to justify publicly any departure from the Commission's advice — accountability by tra	

STATIC THEORY

- **Why Art 320(3) is only directory:** □□ it preserves the executive's ultimate responsibility for administration, but the price is that merit protection depends on convention rather than compulsion.

- **Why the Art 323 memorandum matters:** □□ it forces the government to justify **publicly** any departure from the Commission's advice — accountability by transparency rather than by veto.

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.8 Mechanism, institutional incentives and consequences

HIGH

Foundation · 5.9 Criticism, counter-argument, variation and implementation constraints

GS-II Indian Polity

INTRO & ORIGIN

Recruiting-agency-only critique: □□ the UPSC has **no say in the classification of services, cadre management, pay or training** (these belong to the **DoPT**) or in promotions **policy**; its advice is not binding (Art 320(3)) and it is excluded from wide areas — so it is, in substance, an **advisory recruiting body**, not a personnel authority.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.9 CRITICISM, COUNTER-ARGUMENT, VARIATION AND IMPLEMENTATION CONSTRAINTS: RECALL MAP

5.9 Criticism, counter-argument, variation and implementation constraints

V

Dimension 1 Recruiting-agency-only critique: □□ the UPSC has no say in the classification of services, cadre management, pay or training (these belong to the DoPT	**Dimension 2** Counter (independence is real): □□ constitutional status, an SC-protected removal, charged expenditure and the Art 323 memorandum give the UPSC genuin
Dimension 3 Variation: □□ several State PSCs face vacancies, delays and questions over autonomy and transparency; quality is uneven across States.	**Dimension 4** Implementation constraint: □□ lateral entry and examination-reform proposals test the merit-recruitment monopoly and must be designed so as not to byp

STATIC THEORY

- **Counter (independence is real):** □□ constitutional status, an SC-protected removal, charged expenditure and the Art 323 memorandum give the UPSC genuine autonomy; the "watch-dog of the merit system" role survives despite the advisory limitation.

- **Variation:** □□ several **State PSCs** face vacancies, delays and questions over autonomy and transparency; quality is uneven across States.

- **Implementation constraint:** □□ lateral entry and examination-reform proposals test the merit-recruitment monopoly and must be designed so as not to bypass the constitutional guarantee.

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.9 Criticism, counter-argument, variation and implementation constraints

HIGH

Foundation · 5.10 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Independence verdict: "The UPSC is protected where it is removed but constrained where it functions — a body strong enough to resist dismissal yet too advisory to command the personnel system it guards."

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.10 VERDICT SCAFFOLDS: RECALL MAP

5.10 Verdict scaffolds

V

Dimension 1 Independence verdict: "The UPSC is protected where it is removed but constrained where it functions — a body strong enough to resist dismissal yet too	**Dimension 2** Advisory-role verdict: "The UPSC's authority is moral and procedural, not coercive; the Art 323 memorandum, not a binding power, is what keeps its adv
Dimension 3 Federal-design verdict: "By letting the Governor appoint but only the President remove SPSC members, the Constitution keeps State recruitment both Sta	

STATIC THEORY

- **Advisory-role verdict:** "The UPSC's authority is moral and procedural, not coercive; the Art 323 memorandum, not a binding power, is what keeps its advice consequential."

- **Federal-design verdict:** "By letting the Governor appoint but only the President remove SPSC members, the Constitution keeps State recruitment both State-rooted and Union-insulated."

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.10 Verdict scaffolds

HIGH

Foundation · 5.11 Prelims close-option distinctions · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
Who removes an SPSC member	The **President** (Art 317), never the Governor
UPSC vs SPSC term	UPSC **6 yr / 65**; SPSC **6 yr / 62**
Strength of the Commission	**Not fixed** by the Constitution
JSPSC status	**Statutory** — created by an **Act of Parliament** (Art 315(2)), not a constitutional body
Nature of UPSC advice	**Directory, not binding** (Art 320(3)); confers **no right** to the post
Post-office (UPSC Chairman)	**No** further employment under the Union or any State
Consultation exclusions	**Reservations and SC/ST claims** are outside the consultation duty
Finance	UPSC on the **Consolidated Fund of India**; SPSC on the **Consolidated Fund of the State** (Art 322)

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.11 Prelims close-option distinctions

HIGH

Foundation · 5.11 Prelims close-option distinctions · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
UPSC vs DoPT	UPSC **recruits**; the **DoPT** handles cadre, pay and training

MAINS ANGLE

STUDY LINK
UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.11 Prelims close-option distinctions

HIGH

Foundation · 5.12 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

 Removal under **Art 317** is by the **President after a Supreme Court inquiry** — do not say the Governor removes SPSC members, and do not use the "resolution of both Houses" route (that is for judges and the CEC, not PSC members). The Constitution fixes **no strength** — do not assert a fixed number of members. **Art 320(3) is directory** — do not claim UPSC advice is legally binding.

INTRO & ORIGIN

 The **JSPSC is statutory**, not constitutional; the SPSC retirement age is **62**, not 65.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.12 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

5.12 Factual-risk and current-status controls

V

Dimension 1 The JSPSC is statutory, not constitutional; the SPSC retirement age is 62, not 65.	**Dimension 2** Art 319's bar does not cover a constitutional office (Governor) — cite the exact scope, not a blanket ban.
Dimension 3 The Puja Khedkar verification controversy (2024) and lateral entry are current debates — tag them as current and verify status before dating.	

STATIC THEORY

- Art 319's bar does not cover a **constitutional office** (Governor) — cite the exact scope, not a blanket ban.

- The **Puja Khedkar** verification controversy (2024) and **lateral entry** are current debates — tag them as current and verify status before dating.

MUST-KNOW FACTS

1. The **JSPSC is statutory**, not constitutional; the SPSC retirement age is **62**, not 65.

2. Art 319's bar does not cover a **constitutional office** (Governor) — cite the exact scope, not a blanket ban.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → 5.12 Factual-risk and current-status controls

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Constitutional map: *Articles 315-323 separately govern establishment, appointment/tenure, removal/suspension, service conditions, post-office bars, functions, extension of functions, charged expenditure and annual reporting for the UPSC, SPSCs and Joint State Public Service Commissions.* ***Composition:*** *the Constitution fixes no numerical strength. The President appoints UPSC and Joint Commission members and determines their number/service conditions under Article 318; the Governor performs the corresponding SPSC functions. As nearly as may be, one-half of members must have held government office for at least ten years.* ***Current UPSC control:*** *the official UPSC Commission page, last updated 3 September 2026 and rechecked 5 September 2026, identifies Dr Ajay Kumar as Chairman. The package does not freeze an unsupported full roster or a constitutionally fixed member count.* ***Tenure and acting chair:*** *Article 316 gives six years subject to age sixty-five for UPSC and sixty-two for SPSC/Joint Commission members. The President or Governor, as applicable, may appoint a member as acting chair.* ***Removal/suspension precision:*** *only the President removes any PSC member. Misbehaviour requires a presidential reference, Supreme Court inquiry and recommendation under Article 317(1). Pending inquiry, the President may suspend a UPSC or Joint Commission member, while the Governor may suspend an SPSC member. Article 317(3)-(4) contains the separate objective/deemed grounds.* ***Post-office and finance:*** *Article 319's eligibility bars are office-specific and do not mean one blanket ban. Article 322 charges UPSC/Joint Commission expenses on the Consolidated Fund of India and SPSC expenses on the Consolidated Fund of the State.* ***Functions and exclusions:*** *Article 320 covers examinations, recruitment methods, appointments/promotions/transfers and disciplinary/claim advice. Article 320(4) excludes consultation on Article 16(4) and Article 335 matters; the proviso to Article 320(3) authorises valid exemption regulations.* ***Judicial rule:*** *State of U.P. v Manbodhan Lal Srivastava (1957) holds Article 320(3)(c) consultation directory: non-consultation does not by itself invalidate action or confer a cause of action. Advice remains institutionally important and Article 323 requires reports plus reasons for non-acceptance.* ***Recruitment rule:*** *selection/recommendation does not itself create an indefeasible right to appointment. Tej Prakash Pathak (2024 INSC 847) supplies the current Constitution-Bench control against arbitrary mid-process changes to recruitment rules, subject to the governing rules and non-arbitrariness.* ***Institution firewall:*** *UPSC/SPSC recruitment and advice are distinct from DoPT cadre administration, the Public Examinations Act integrity framework, tribunals, Election Commissions and Finance Commissions. A Joint State PSC follows State resolutions and parliamentary law; it is not a permanent third constitutionally mandated tier.*

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 43–44 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/UPSC-and-SPSC.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 43–44 (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/UPSC-and-SPSC.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — UPSC (Art 315–323, Part XIV) □

GS-II Indian Polity

INTRO & ORIGIN

□ The **central recruiting agency** — an **independent constitutional body** (directly created by the Constitution). Governs composition, appointment, removal, independence, powers & functions of the UPSC and SPSCs.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. The **central recruiting agency** — an **independent constitutional body** (directly created by the Constitution). Governs composition, appointment, removal, independence, powers & functions of the UPSC and SPSCs.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → PART A — UPSC (Art 315–323, Part XIV) □

HIGH

Advanced · Composition

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Detail
□ Members	**Chairman + members** appointed by the **President**; strength **not fixed** (usually 9–11)
□ Qualification	None specified — but **⅓ the members** must have held office **≥ 10 years** under the Centre/a state
□ Term	**6 years or 65 years**, whichever earlier
□ Acting chairman	President may appoint a member as acting chairman (15th Amdt 1963)

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Composition

HIGH

Advanced · Removal (Art 317) □

GS-II Indian Polity

INTRO & ORIGIN

□ President removes the chairman/member if: **(a) adjudged insolvent**, **(b) engages in paid employment outside office**, **(c) unfit due to infirmity of mind/body**. For **misbehaviour**, the President **refers the matter to the Supreme Court** — the SC's advice (after enquiry) is **binding**. (President may **suspend** during the enquiry.)

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. President removes the chairman/member if: **(a) adjudged insolvent**, **(b) engages in paid employment outside office**, **(c) unfit due to infirmity of mind/body**. For **misbehaviour**, the President **refers the matter to the Supreme Court** — the SC's advice (after enquiry) is **binding**. (President may **suspend** during the enquiry.)

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Removal (Art 317) □

HIGH

Advanced · Independence · Part 1

GS-II Indian Polity

INTRO & ORIGIN

□ **Security of tenure** (removed only in the constitutional manner).

Advanced learning layer: concepts → constitutional detail → UPSC application.

INDEPENDENCE: RECALL MAP

Independence

V

Dimension 1 □ Security of tenure (removed only in the constitutional manner).	**Dimension 2** □ Service conditions can't be varied to disadvantage after appointment.
Dimension 3 □ Expenses (salaries/pensions) charged on the Consolidated Fund of India (not voted).	**Dimension 4** □ UPSC Chairman: no further employment under Union/State.

STATIC THEORY

- □ Service conditions **can't be varied to disadvantage** after appointment.
- □ Expenses (salaries/pensions) **charged on the Consolidated Fund of India** (not voted).
- □ **UPSC Chairman:** no further employment under Union/State.
- □ **SPSC Chairman:** may become UPSC Chairman/member or Chairman of another SPSC.
- □ **UPSC member:** may become UPSC Chairman or an SPSC Chairman.
- □ **SPSC member:** may become UPSC Chairman/member or Chairman of the same/another SPSC.

MUST-KNOW FACTS

1. **Security of tenure** (removed only in the constitutional manner).
2. Service conditions **can't be varied to disadvantage** after appointment.
3. Expenses (salaries/pensions) **charged on the Consolidated Fund of India** (not voted).
4. **UPSC Chairman:** no further employment under Union/State.
5. **SPSC Chairman:** may become UPSC Chairman/member or Chairman of another SPSC.
6. **UPSC member:** may become UPSC Chairman or an SPSC Chairman.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Independence

HIGH

Advanced · Independence · Part 2

GS-II Indian Polity

INTRO & ORIGIN

 No re-appointment to the same office (no second term).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □□ *A.R. Kidwai case (1979):* an ex-UPSC chairman appointed **Governor** was upheld — Governor is a

- **constitutional office**, not "employment under government."

MUST-KNOW FACTS

1. **No re-appointment** to the same office (no second term).

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Independence

HIGH

Advanced · Functions

GS-II Indian Polity

INTRO & ORIGIN

 Conducts exams for **All-India / Central services & UT services**; advises on **recruitment methods, appointments, promotions, transfers, disciplinary matters, legal-expense/pension claims**. Presents an **annual report** to the President → laid before Parliament with a memo explaining rejected advice.

Advanced learning layer: concepts → constitutional detail → UPSC application.

FUNCTIONS: RECALL MAP

Functions

V

Dimension 1 Conducts exams for All-India / Central services & UT services; advises on recruitment methods, appointments, promotions, transfers, disciplinary mat	**Dimension 2** Advisory & directory, NOT mandatory: the SC held that failure to consult the UPSC does not invalidate
Dimension 3 a government decision, and UPSC selection confers no right to the post.	

STATIC THEORY

- **Advisory & directory, NOT mandatory:** the SC held that failure to consult the UPSC does **not invalidate**

- a government decision, and UPSC selection confers **no right to the post**.

MUST-KNOW FACTS

1. Conducts exams for **All-India / Central services & UT services**; advises on **recruitment methods, appointments, promotions, transfers, disciplinary matters, legal-expense/pension claims**. Presents an **annual report** to the President → laid before Parliament with a memo explaining rejected advice.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Functions

HIGH

Advanced · Limitations (UPSC NOT consulted on)

GS-II Indian Polity

INTRO & ORIGIN

Reservations for backward classes; SC/ST claims; selections for **tribunal/commission chairmanships, top diplomatic posts, bulk of Group C & D**; temporary appointments ≤ 1 year. The President may exclude posts by **regulations laid before Parliament for 14 days**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Limitations (UPSC NOT consulted on)

HIGH

Advanced · Role

GS-II Indian Polity

INTRO & ORIGIN

 "Watch-dog of the merit system" — but only a **recruiting agency**. Cadre management, pay, training → **Department of Personnel & Training (DoPT)**, the central *personnel* agency. On disciplinary matters it has an **edge over the CVC** (UPSC is constitutional; CVC statutory since 2003).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. "Watch-dog of the merit system" — but only a **recruiting agency**. Cadre management, pay, training → **Department of Personnel & Training (DoPT)**, the central *personnel* agency. On disciplinary matters it has an **edge over the CVC** (UPSC is constitutional; CVC statutory since 2003).

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Role

HIGH

Advanced · PART B — STATE PSC (SPSC)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	UPSC	SPSC
Created by	Constitution	Constitution
Appointed by	**President**	**Governor**
Removed by	**President**	**President** (NOT the Governor!)
Member's onward eligibility	UPSC chairman / SPSC chairman	UPSC member/chairman, **or** chairman of the **same or another SPSC**
½-members-10-yr rule	Yes	Yes
Term	6 yr / 65 yr	6 yr / **62 yr**

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → PART B — STATE PSC (SPSC)

HIGH

Advanced · PART B — STATE PSC (SPSC) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Key trap:** An SPSC member/chairman is **appointed by the Governor but removed only by the President** — a state functionary removable only by the Union.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → PART B — STATE PSC (SPSC) □

HIGH

Advanced · PART C — JOINT SPSC (JSPSC) □

GS-II Indian Polity

INTRO & ORIGIN

□ For **two or more states**. Unlike UPSC/SPSC (constitutional), a **JSPSC is created by an Act of Parliament** (on the request of the state legislatures). Its **chairman & members are appointed by the President** and removed by the President. Term: 6 yr / 62 yr.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **UPSC can also serve a state's needs** — on the **Governor's request** with the **President's approval**.

MUST-KNOW FACTS

1. For **two or more states**. Unlike UPSC/SPSC (constitutional), a **JSPSC is created by an Act of Parliament** (on the request of the state legislatures). Its **chairman & members are appointed by the President** and removed by the President. Term: 6 yr / 62 yr.

2. UPSC can also serve a state's needs — on the **Governor's request** with the **President's approval**.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → PART C — JOINT SPSC (JSPSC) □

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: SPSC members are removed by the Governor

CORRECT: removed **only by the President**.

WRONG: UPSC advice is binding on the government

CORRECT: advisory/directory, not binding.

WRONG: UPSC handles pay, cadre & training

CORRECT: that's the **DoPT**; UPSC only **recruits**.

WRONG: A UPSC member can take any government job after his term

CORRECT: only **UPSC/SPSC chairmanship**.

WRONG: JSPSC is a constitutional body

CORRECT: created by an **Act of Parliament** (statutory).

WRONG: UPSC is consulted on reservations/SC-ST claims

CORRECT: these are **outside** its purview.

WRONG: SPSC retirement age is 65

CORRECT: 62 for SPSC (65 for UPSC).

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □□ **UPSC/CSE reform debate** — attempts limit/age relaxation demands; the **"UDAAN"/one-nation-one-exam** and lateral-entry-into-bureaucracy controversy. □ □□ **Puja Khedkar fake-disability/OBC-certificate case (2024)** → UPSC integrity, candidate verification, and

INTRO & ORIGIN

the "watch-dog of merit" role in focus.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ □□ Vacancies & delays in several **State PSCs**; demand for greater autonomy and transparency.

MAINS ANGLE

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The UPSC is only as strong as the merit system it guards." Examine its role and limitations. SPSC members appointed by the Governor but removable only by the President — assess this federal design. Lateral entry vs UPSC recruitment: does it dilute or strengthen the merit system?

STUDY LINK

UPSC & State Public Service Commissions (Articles 315–323) — ADVANCED / COMPLETE → Mains angles

End of Register Notes - UPSC Agent / Copilot CLI